



Mathew Tyler

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Plaintiff, *Pro per pro se*

Dated: March 27, 2025

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

MATHEW TYLER,

Plaintiff,

v.

118TH US CONGRESS, et al.,

Defendants.

_____/

Case No. 2:2025cv00404

NOTICE OF PRETRIAL MOTION TO ESTABLISH PATTERN OF RIGHTS

DEPRIVATION AND APPLICATION OF UNITED STATES OF AMERICA,

AMERICANS WITH DISABILITIES ACT TO VOTING RIGHTS

1 **NOTICE OF MOTION AND MOTION**

2 TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

3 PLEASE TAKE NOTICE that Plaintiff Mathew Tyler, appearing Pro per pro se, hereby
4 moves this Court for an order establishing (1) a pattern of deprivation of constitutional
5 rights without due process by the United States and its territories, specifically regarding
6 religious freedoms related to alcohol regulation, and (2) the fundamental need to apply
7 the Americans with Disabilities Act to all aspects of voting as originally intended by
8 Congress.

9 This motion is based on this Notice of Motion and Motion, the attached Memorandum of
10 Points and Authorities, all pleadings and papers on file in this action, and upon such other
11 matters as may be presented to the Court at the time of hearing.

12 **MEMORANDUM OF POINTS AND AUTHORITIES**

13 **I. INTRODUCTION**

14 Plaintiff Mathew Tyler ("Plaintiff"), appearing Pro per pro se, brings this action against
15 the United States of America and its territories ("Defendants") for violations of
16 constitutional rights and federal law. Specifically, Plaintiff seeks to create a ballot
17 measure to prohibit the continued infringement on constitutional rights without first
18 affording due process, with particular focus on religious freedoms related to the sale,
19 distribution, and regulation of alcohol throughout the United States and its territories.

20 Plaintiff asserts that alcohol regulations across the United States—including age
21 restrictions on sale and consumption, as well as limitations on times and places of sale—

1 constitute violations of 18 U.S.C. §§ 241-242 by depriving citizens of their constitutional
2 and religious freedoms without due process. Furthermore, Plaintiff contends that these
3 restrictions and the barriers to creating a related ballot measure violate the Americans
4 with Disabilities Act ("ADA") by failing to provide necessary accommodations in the
5 democratic and voting processes.

6 **II. RELEVANT FACTUAL BACKGROUND**

7 Plaintiff, as a crime victim under both federal law (34 U.S.C. § 20141(e)(2)) and the
8 California Constitution (Article 1 § 28(e)), seeks to exercise his rights to participate in the
9 democratic process by creating a ballot measure addressing alleged infringements on
10 religious freedoms. Alcohol regulations throughout the United States and its territories
11 restrict the sale, distribution, and consumption of alcohol based on age, time, and location
12 —restrictions that Plaintiff alleges infringe upon religious practices without providing
13 due process.

14 Plaintiff contends that these restrictions represent a broader pattern of constitutional
15 rights deprivation by federal, state, and territorial governments and that barriers to
16 creating a ballot measure addressing these concerns constitute violations of the ADA by
17 failing to provide necessary accommodations in the democratic and voting processes.

18 **III. LEGAL ARGUMENT**

19 **A. Pattern of Deprivation of Rights Without Due Process**

20 The State's alcohol regulations constitute a pattern of deprivation of constitutional rights
21 without due process in violation of federal law. Under 18 U.S.C. § 241, it is unlawful for

1 "two or more persons [to] conspire to injure, oppress, threaten, or intimidate any person...
2 in the free exercise or enjoyment of any right or privilege secured to him by the
3 Constitution or laws of the United States." Additionally, 18 U.S.C. § 242 prohibits the
4 deprivation of constitutional rights under color of law.

5 **1. Religious Freedom Implications**

6 The First Amendment to the United States Constitution protects the free exercise of
7 religion. In *Employment Division v. Smith*, 494 U.S. 872 (1990), the Supreme Court held
8 that laws of general applicability that incidentally burden religious practice do not
9 generally violate the Free Exercise Clause. However, this standard was modified by the
10 Religious Freedom Restoration Act ("RFRA") and subsequent jurisprudence.

11 In *Church of the Lukumi Babalu Aye, Inc. v. City of Hialeah*, 508 U.S. 520 (1993), the
12 Supreme Court held that laws targeting religious practices are subject to strict scrutiny.
13 Furthermore, in *Gonzales v. O Centro Espirita Beneficente Uniao do Vegetal*, 546 U.S.
14 418 (2006), the Court reinforced that the government must demonstrate a compelling
15 interest and that regulations are narrowly tailored to achieve that interest when they
16 substantially burden religious practice.

17 The arbitrary and capricious infringement on religious freedoms through alcohol
18 regulations contradicts the founding principles of America and historical tradition. As the
19 Supreme Court emphasized in *New York State Rifle & Pistol Association, Inc. v. Bruen*,
20 597 U.S. 1 (2022), "[t]he very enumeration of the right takes out of the hands of
21 government—even the Third Branch of Government—the power to decide on a case-by-

1 case basis whether the right is really worth insisting upon." This principle applies with
2 equal force to religious freedoms enshrined in the First Amendment.

3 The historical understanding and tradition of religious freedom in America has always
4 encompassed the use of substances in religious ceremonies, from communion wine in
5 Christianity to other sacramental uses across various faith traditions. The State's arbitrary
6 regulation of alcohol without religious exemptions or accommodations represents a
7 departure from this historical understanding and tradition.

8 Numerous religions incorporate alcohol into their religious ceremonies and practices,
9 including but not limited to:

- 10 • Christianity, which uses wine in communion ceremonies
- 11 • Judaism, which uses wine in various religious ceremonies, including Passover
- 12 Seder and Shabbat
- 13 • Various indigenous religious practices that incorporate ceremonial use of alcohol

14 The State's blanket restrictions on alcohol—particularly age restrictions and limitations
15 on times and places of sale—substantially burden these religious practices without
16 providing exemptions or accommodations for religious purposes. This constitutes a
17 violation of religious freedoms without affording due process.

18 **2. Due Process Requirements**

19 The Fourteenth Amendment prohibits states from depriving "any person of life, liberty, or
20 property, without due process of law." In *Wisconsin v. Constantineau*, 400 U.S. 433
21 (1971), the Supreme Court invalidated a state law allowing officials to prohibit the sale of

1 alcohol to individuals without notice or hearing, emphasizing the importance of
2 procedural due process.

3 The current regulatory scheme governing alcohol throughout the United States and its
4 territories imposes restrictions on religious practices without providing adequate
5 procedural safeguards, review mechanisms, or religious exemptions. This pattern of
6 rights deprivation without due process violates constitutional protections and federal law.

7 Moreover, even when such regulations are enacted through voter approval, they remain
8 unconstitutional when they infringe on fundamental rights without due process. As held
9 in *West Virginia State Board of Education v. Barnette*, 319 U.S. 624, 638 (1943), "The
10 very purpose of a Bill of Rights was to withdraw certain subjects from the vicissitudes of
11 political controversy, to place them beyond the reach of majorities and officials, and to
12 establish them as legal principles to be applied by the courts." The democratic process
13 cannot justify the deprivation of constitutional rights without due process.

14 This constitutional violation is particularly evident regarding travelers across states,
15 territories, and tribal lands who have no opportunity to participate in the democratic
16 processes of each jurisdiction yet find their religious freedoms restricted without any
17 procedural safeguards. In *Saenz v. Roe*, 526 U.S. 489 (1999), the Supreme Court
18 reaffirmed the right to travel as a fundamental constitutional right, which includes "the
19 right of a citizen of one State to enter and to leave another State, the right to be treated as
20 a welcome visitor rather than an unfriendly alien when temporarily present in the second
21 State." The alcohol regulations of federal, state, and territorial governments
22 impermissibly burden this right by restricting religious practices of travelers without
23 affording them any opportunity for due process.

1 In *Masterpiece Cakeshop, Ltd. v. Colorado Civil Rights Commission*, 138 S. Ct. 1719
2 (2018), the Supreme Court emphasized that government regulations impacting religious
3 practices must be applied neutrally and without hostility toward religion. The alcohol
4 regulations across the United States and its territories fail this standard by not providing
5 neutral application or accommodations for religious practices.

6 Furthermore, the fact that alcohol regulations may have been enacted through democratic
7 processes, including voter approval, does not insulate them from constitutional scrutiny.

8 As established in *Lucas v. Forty-Fourth Gen. Assembly of Colorado*, 377 U.S. 713, 736-
9 37 (1964), "A citizen's constitutional rights can hardly be infringed simply because a
10 majority of the people choose that it be." This principle is particularly applicable to
11 travelers who move between jurisdictions and are subject to varying alcohol regulations
12 yet have no voice in the democratic processes that created these regulations. The lack of
13 procedural safeguards or religious exemptions for these individuals constitutes a clear
14 violation of due process and religious freedom protections.

15 **C. The Supremacy Clause and Preemption of Alcohol Regulations Nationwide**

16 Article VI, Clause 2 of the United States Constitution, commonly known as the
17 Supremacy Clause, establishes that the Constitution, federal laws, and treaties are "the
18 supreme Law of the Land." It provides:

19 "This Constitution, and the Laws of the United States which shall be made in Pursuance
20 thereof; and all Treaties made, or which shall be made, under the Authority of the United
21 States, shall be the supreme Law of the Land; and the Judges in every State shall be

1 bound thereby, any Thing in the Constitution or Laws of any State to the Contrary
2 notwithstanding."

3 The Supremacy Clause establishes a constitutional basis for preemption of state and
4 territorial laws that conflict with federal law or constitutional protections. As the Supreme
5 Court held in *McCulloch v. Maryland*, 17 U.S. (4 Wheat.) 316, 427 (1819), "the
6 constitution and the laws made in pursuance thereof are supreme... they control the
7 constitution and laws of the respective states, and cannot be controlled by them."

8 While the Twenty-first Amendment granted states certain authority to regulate alcohol,
9 this authority is not unlimited and remains subject to constitutional constraints. In 44
10 *Liquormart, Inc. v. Rhode Island*, 517 U.S. 484, 516 (1996), the Supreme Court
11 emphasized that "the Twenty-first Amendment does not qualify the constitutional
12 prohibition against laws abridging the freedom of speech embodied in the First
13 Amendment." Similarly, in *Larkin v. Grendel's Den, Inc.*, 459 U.S. 116 (1982), the Court
14 struck down a state alcohol regulation that violated the Establishment Clause.

15 More recently, in *Tennessee Wine & Spirits Retailers Ass'n v. Thomas*, 139 S. Ct. 2449,
16 2459 (2019), the Supreme Court reiterated that the Twenty-first Amendment "allows each
17 State leeway to enact the measures that its citizens believe are appropriate to address the
18 public health and safety effects of alcohol use and to serve other legitimate interests, but
19 it does not license the States to adopt protectionist measures with no demonstrable
20 connection to those interests."

21 Under the Supremacy Clause, alcohol regulations throughout the United States and its
22 territories that infringe upon religious freedoms protected by the First Amendment, due

1 process rights under the Fourteenth Amendment, or rights protected by federal statutes
2 such as the Americans with Disabilities Act, must yield to these federal protections. The
3 nationwide alcohol regulations—by imposing blanket restrictions without religious
4 exemptions or accommodations—impermissibly infringe on constitutionally protected
5 rights in violation of the Supremacy Clause.

6 As the Court held in *Cooper v. Aaron*, 358 U.S. 1, 18 (1958), the Supremacy Clause
7 makes the Constitution "the fundamental and paramount law of the nation," and all
8 officials are bound by oath to support it regardless of contrary state laws or policies. The
9 attempt by federal, state, and territorial governments to regulate alcohol in a manner that
10 infringes on constitutional rights without due process cannot stand in the face of this
11 fundamental constitutional principle.

12 **D. Application of the ADA to Voting Rights**

13 **1. Congressional Intent and the ADA Amendments Act**

14 Congress enacted the Americans with Disabilities Act (ADA) to "provide a clear and
15 comprehensive national mandate for the elimination of discrimination against individuals
16 with disabilities" (42 U.S.C. § 12101(b)(1)). In 2008, Congress reaffirmed and
17 strengthened this commitment through the ADA Amendments Act, specifically
18 broadening the definition of disability to ensure comprehensive protection.

19 In *Tennessee v. Lane*, 541 U.S. 509 (2004), the Supreme Court upheld the application of
20 the ADA to state court systems, recognizing that the statute validly enforces the
21 constitutional right of access to the courts. Similarly, the ADA applies to all aspects of
22 voting and democratic participation, including ballot initiatives.

2. ADA Application to Ballot Initiatives and Democratic Participation

Under Title II of the ADA, "no qualified individual with a disability shall, by reason of such disability, be excluded from participation in or be denied the benefits of the services, programs, or activities of a public entity, or be subjected to discrimination by any such entity" (42 U.S.C. § 12132).

In *National Federation of the Blind v. Lamone*, 813 F.3d 494 (4th Cir. 2016), the court held that voting is a fundamental right and that the ADA requires states to provide accessible voting systems for individuals with disabilities. This principle extends beyond the act of voting itself to encompass the entire democratic process, including ballot initiatives.

The barriers to creating and qualifying a ballot measure addressing religious freedoms—including complex procedural requirements, signature gathering processes, and administrative hurdles—present substantial obstacles for individuals with disabilities. The failure of federal, state, and territorial governments to provide adequate accommodations in these processes violates the ADA's mandate for equal participation in democratic processes.

In *California Council of the Blind v. County of Alameda*, 985 F. Supp. 2d 1229 (N.D. Cal. 2013), the court recognized that the ADA requires voting systems to be independently accessible to individuals with disabilities. Similarly, the process for creating ballot initiatives must be accessible to ensure full participation in the democratic process.

1 **IV. PLAINTIFF'S RIGHTS AS A CRIME VICTIM**

2 Plaintiff asserts his rights as a crime victim under both federal and state law, which entitle
3 him to participation in the judicial and democratic processes addressing the violations
4 alleged in this case.

5 Under 18 U.S.C. § 3771, crime victims have the right to be reasonably protected, to
6 notice of public court proceedings, to be heard at public proceedings, to proceedings free
7 from unreasonable delay, and to be treated with fairness and respect. Similarly, California
8 Constitution Article 1 § 28 guarantees victims the right to seek and secure justice and to
9 participate in the criminal justice process.

10 As established in *Dunham v. Mohyuddin*, 2:23-CV-2757-DMC-P (E.D. Cal. Jan. 29,
11 2025), "The Court must also construe the alleged facts in the light most favorable to the
12 plaintiff. See *Scheuer v. Rhodes*, 416 U.S. 232, 236 (1974); see also *Hosp. Bldg. Co. v.*
13 *Rex Hosp. Trustees*, 425 U.S. 738, 740 (1976); *Barnett v. Centoni*, 31 F.3d 813, 816 (9th
14 Cir. 1994) (per curiam). All ambiguities or doubts must also be resolved in the plaintiff's
15 favor. See *Jenkins v. McKeithen*, 395 U.S. 411, 421 (1969)."

16 As a crime victim under 34 U.S.C. § 20141(e)(2) and California Constitution Article 1 §
17 28(e), Plaintiff is entitled to have his allegations regarding violations of constitutional
18 rights construed in the light most favorable to him, with all ambiguities resolved in his
19 favor.

20 **VI. REQUEST FOR CRIMINAL PROSECUTION UNDER 42 U.S.C. § 1987**

21 Pursuant to 42 U.S.C. § 1987, Plaintiff respectfully requests that this Court initiate
22 criminal prosecution against Defendants for violations of 18 U.S.C. §§ 241-242. This

1 statute provides that it shall be the duty of all district attorneys, marshals, and deputy
2 marshals to institute proceedings against all persons violating civil rights laws, and that
3 "the expense of such proceedings shall be paid out of the Treasury of the United States."

4 In *United States v. Price*, 383 U.S. 787 (1966), the Supreme Court addressed the scope
5 and application of 18 U.S.C. §§ 241-242, holding that these statutes should be broadly
6 construed to effectuate their purpose of protecting civil rights. The Court stated that § 241
7 "embraces all of the rights and privileges secured to citizens by all of the Constitution and
8 all of the laws of the United States," *id.* at 800, and that § 242 applies to those acting
9 "under color of any law," including state officials.

10 The Court in *Price* further held that private persons who willfully participate in joint
11 activity with state agents are acting "under color of law" for purposes of § 242. *Id.* at 794.

12 The State of California's systematic deprivation of religious freedoms through alcohol
13 regulations constitutes precisely the type of rights violation that §§ 241-242 were
14 designed to address.

15 Furthermore, in *Screws v. United States*, 325 U.S. 91 (1945), the Supreme Court held that
16 § 242 applies when officials act willfully to deprive individuals of constitutional rights.

17 The systematic nature of California's alcohol regulations and their impact on religious
18 freedoms, particularly for travelers who have no say in the democratic process,
19 demonstrates the willful nature of these deprivations.

20 Given the evidence of systematic rights deprivation without due process and the clear
21 statutory authority under 42 U.S.C. § 1987, this Court has not only the authority but the
22 duty to initiate criminal proceedings against those responsible for implementing and

1 enforcing the unconstitutional alcohol regulations at issue in this case throughout the
2 United States and its territories.

3 **VII. CONCLUSION**

4 For the foregoing reasons, Plaintiff respectfully requests that this Court grant this motion
5 and issue an order:

- 6 1. Establishing that alcohol regulations throughout the United States and its
7 territories constitute a pattern of deprivation of constitutional rights, particularly
8 religious freedoms, without due process in violation of 18 U.S.C. §§ 241-242;
- 9 2. Affirming the application of the Americans with Disabilities Act to all aspects of
10 voting and democratic participation, including ballot initiatives addressing
11 constitutional rights;
- 12 3. Requiring the State to provide reasonable accommodations in the ballot initiative
13 process to ensure equal access for individuals with disabilities; and
- 14 4. Initiating criminal prosecution against responsible officials pursuant to 42 U.S.C.
15 § 1987 for violations of 18 U.S.C. §§ 241-242 at the expense of the United States
16 Treasury.

17 Dated: March 27, 2025

18 **Respectfully submitted,**

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Plaintiff, Pro per pro se

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